

24NNCV03377 24NNCV03377

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-06-23

Motion: MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

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Case Number: 24NNCV03377 Hearing Date: June 23, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST

DISTRICT

KY JUNG

NAM, et al.,

Plaintiff(s),

vs.

GENERAL

MOTORS LLC, et al. ,

Defendant(s).

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CASE NO.: 24NNCV03377

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

Dept.

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8:30

a.m.

June 23,

2026

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On May 26, 2026, plaintiffs Ky Jung Nam

and NKJ Investment LLC (collectively, "Plaintiffs") filed this motion for an

award of attorney's fees, costs, and expenses pursuant to Civil Code § 1794(d)

in the amount of \$23,190.48, consisting of \$21,737 in fees and \$1,453.48 in

costs and expenses. Defendant General Motors LLC ("Defendant") filed an

opposition brief on June 9, 2026. Plaintiffs filed a reply brief on June 15,

2026.

Plaintiffs' counsel, M. Nicholas Nita, attaches

billing records showing that his firm's paralegal bills at an hourly rate of

\$250, a legal assistant bills at an hourly rate of \$150, and he himself bills

at an hourly rate of \$625. (Nita Decl., Ex. A.) Defendant does not challenge

the reasonableness of rates but argues that fees should be disallowed for

certain billing entries. (Opp., pp. 4-5.) Defendant argues that the Court

should find at least 32.9 hours of work to be unreasonably incurred and that

Plaintiffs' counsel should not be awarded more than \$10,787.50, representing

27.7 hours in fees. Each category is discussed below.

First, Defendant argues that

Plaintiff's counsel cannot recover for 0.7 hours of "pre-engagement" work. This

work includes "time spent evaluating a potential client prior to engagement."

The argument is unpersuasive because this amount of time is incurred as part of

the "commencement and prosecution" of Plaintiffs' case, which is allowable

under Civil Code § 1794.

Second, Defendant argues that the total

amount of time billed for preparing the Complaint is unreasonable. Mr. Nita

spent 0.2 hours to review and revise the Complaint after a paralegal, Jovanna

Garay, spent 1.5 hours to prepare a template for the complaint, summons, and

civil case cover sheet for filing, as well as to research the dealer and the

proper jurisdiction for this case. Defendant argues that Plaintiffs' counsel

should not have taken more than 15 minutes to change the caption and the

vehicle information on the templated document and requests a reduction of 1.4

hours (or \$387.50).

In opposition, Plaintiffs argue that

spending 1.5 hours to prepare the Complaint and filing papers is reasonable

because templates do not eliminate the need for work including summarizing the

vehicle's repair history, reviewing the purchase contract, researching any

preexisting recalls or class actions, researching the proper venue, conducting

interviews with clients, as well as the actual filing of the document. (Reply,

p. 4.) The problem with Plaintiffs'

argument is that this work is encompassed in other billing entries. Therefore,

Defendant's request to strike 1.3 hours at an hourly rate of \$250, for a total

of \$325, from the requested fee award is granted.

Third, Defendant argues that

Plaintiffs' counsel unreasonably billed 3 hours to prepare discovery requests and PMQ notices and should have only billed 0.4 hours. The entries challenged are those billed for work performed on September 10 & 11, 2024; October 2, 2024; March 24, 2025, by a paralegal, Madalina Costescu. The Court deducts the time billed for clerical and administrative work including serving documents (0.2 billed on September 11, 2024, 0.2 billed on October 2, 2024, 0.2 on March 24, 2025), calendaring (0.1 billed on the aforementioned three days) for a total reduction of \$225, consisting of 0.9 at an hourly rate of \$250.

Fourth, Defendant argues counsel should not have billed 4.4 hours reviewing its discovery requests and preparing Plaintiffs' responses. Defendant reasons that it should have taken only 1 hour to prepare responses because Defendant's discovery requests are virtually identical in every case and Plaintiffs' responses should have been identical as well. Defendant cannot propound voluminous discovery and then complain when Plaintiffs are required to expend time to respond to them, especially when Plaintiffs cannot necessarily serve responses used in another case because each case involves different plaintiffs.

Fifth, Defendant argues that Plaintiffs' counsel should not have spent 3 hours to prepare documents ahead of a final status conference and requests a reduction of 2 hours. Defendant also

argues that Plaintiffs' counsel should not have billed 7.3 hours to prepare

"templated" motions in limine. These arguments are not persuasive because the

documents prepared include case specific documents such as jury instructions,

exhibit and witness lists, verdict forms, and 11 motions in limine.

Sixth, Defendant argues that

Plaintiffs' counsel should only be entitled to 3 hours of time spent to prepare

this fee motion, the reply brief, and attend the hearing. This request is

denied. It is unreasonable to expect Plaintiffs' counsel to review Defendant's

opposition brief and prepare a reply brief in 1 hour when Defendant has

challenged multiple categories of billing entries and failed to even identify

the specific entries, which would require additional time for Plaintiffs'

counsel (as it did for the Court) to discern the specific tasks at issue.

However, the Court reduces the amount

of time preparing the fee motion from 6.5 hours to 3 (which, at a billing rate

of \$625, amounts to \$2,187.50); 6.5 hours is an excessive amount of time to

spend on reviewing billing entries in this case when: (1) there is no evidence

that many duplicative or unnecessary entries had to be excluded and (2) the

memorandum of points and authorities contains little legal analysis.

Last, the Court deducts the 1.7 hours

(\$315) billed for coordinating the logistics for Plaintiffs' vehicle surrender

and the transfer of settlement funds as administrative. (Collins v. City of Los Angeles (2012) 205 Cal.App.4th 140, 159.) But the Court refuses to deduct the 14.1 hours that Defendant claims are "purely clerical" because Defendant fails to identify which specific entries are challenged. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In conclusion, the Court reduces the requested fee award of \$21,737 by \$3,052.50 and grants the motion for attorney's fees in the amount of \$18,684.50. The Court's determination of costs and expenses is postponed due to Defendant's pending motion to tax costs.

Dated

this 23rd

day of June 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating

intention to submit on the tentative as directed by the instructions provided

on the court website at www.lacourt.org. Please be advised that if you submit

on the tentative and elect not to appear at the hearing, the opposing party may

nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.